

Mitthu Lal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 13 April 2016 · WRIT - C No. 16747 of 2016 · **Writ disposed; EE to decide clause 6.5 application; restore supply on Rs.50,000 deposit.**

HEADNOTE

After a prior order granting liberty to apply under clause 6.5 of the Electricity Supply Code, 2005, the Executive Engineer's failure to decide the application and disconnection of supply was treated as non-compliance, prima facie contemptuous. The writ was disposed of by directing a fresh clause 6.5 application to be decided by a reasoned speaking order, with restoration of supply if Rs.50,000 was deposited within two weeks.

FACTUAL SUMMARY

The petitioner was required under a one-time settlement scheme of the respondent-Corporation to deposit Rs.45,966 in four instalments, but failed to pay. Writ Petition No. 13495 of 2015 was disposed of on 19 March 2015 with liberty to apply under clause 6.5 of the Electricity Supply Code, 2005. He applied to the Executive Engineer (Distribution), Purvanchal Electricity Distribution Nigam Limited, Allahabad, on 30 March 2015. Without deciding that application the licensee disconnected supply and continued to demand arrears.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

duty to decide clause 6.5 application; restoration pending decision

HOLDING

Once the Court has granted liberty to apply under clause 6.5, the Executive Engineer is obliged to decide that application; unexplained inaction, with disconnection and continued demand of arrears, is non-compliance and prima facie contemptuous. The writ was disposed of with liberty to make a fresh application within two weeks, a direction to decide it by a reasoned speaking order within four weeks, and a further direction that supply be restored forthwith if the petitioner deposited Rs.50,000 within two weeks. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ONE-TIME SETTLEMENT ARREARS DEMAND

Left to the Executive Engineer to decide the fresh clause 6.5 application by a reasoned speaking order. Contempt was not proceeded with; one further opportunity to comply was given. ¶ 1